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Tentative Ruling

Re: ***Garcia v. Ford Motor Company***
Superior Court Case No. 25CECG02366

Hearing Date: July 1, 2026 (Dept. 501)

Motion: By Defendant FF US Acquisition Corp. for an Order Deeming
Admissions Admitted and for Monetary Sanctions

Tentative Ruling:

To find defendant FF US Acquisition Corp.'s motion to deem admissions admitted moot.

To impose monetary sanctions in favor of defendant FF US Acquisition Corp. and against plaintiff Pablo Garcia. (Code Civ. Proc. §§ 2023.010, subd. (d), 2023.030, subd. (a).) Plaintiff is ordered to pay \$1,145 in sanctions to Hawxhurst LLP, within 30 days of the clerk's service of the minute order.

Explanation:

In the case at bench, defendant served plaintiff with Requests for Admissions (Set One) on January 28, 2026. (Nichols Decl., ¶ 2.) On March 16, 2026, defendant filed this motion to deem admissions admitted. After realizing the responses had not been served on this defendant, plaintiff served responses on defendant June 17, 2026. (Lara Decl., ¶ 7.) Accordingly, the court will only consider the issue of sanctions.

Sanctions are mandatory against a party whose failure to respond timely necessitates a motion to deem admitted. (Code Civ. Proc., § 2033.280, subd. (c).) Here, plaintiff's claim that the discovery was improperly served lacks merit as it appears that plaintiff responded and served the discovery, just failing to include the propounding party, when responses were due. (Lara Decl., ¶ 5.) It also appears that plaintiff was given multiple opportunities to correct his own service issue and failed to do so. (Nichols Reply Decl., ¶ 3.) The court finds it reasonable to award sanctions in the amount of \$1,145, representing one hour to prepare the motion and one hour for the reply at the billing rate of \$572.50 per hour.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

